

Plaintiff separately moves for an *in camera* review and preservation of an audio recording of a hearing in the small claims action 24SC091228 “for the sole purpose of verifying whether specific sworn testimony was given.” Plaintiff’s motion is DENIED. The Court may not be enlisted to conduct investigation to “verify” facts for a litigant. Moreover, Gov. Code § 69957(b) states that a recording made for the internal personnel purpose of monitoring the performance of subordinate judicial officers “shall not be used for any other purpose.” Plaintiff asks the Court to use the recording for an “other purpose.” Plaintiff provides no contrary persuasive authorities.

The Court will prepare the final order.

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Calendar Line 8

Case Name: *Gary Roberts vs CERBERUS SENTINEL et al*

Case No.: 24CV452572

Plaintiff moves to transfer the lawsuit that he filed in this court to the Santa Cruz County Superior Court. Citing Code of Civ. Proc., §§ 395 and 396b, Plaintiff lists several reasons why Santa Cruz County is the proper venue. The motion is unopposed.

It appearing to this Court that the action or proceeding was not commenced in the proper court, Plaintiff's motion is GRANTED, and the action or proceeding is hereby TRANSFERRED to the proper court, the Santa Cruz County Superior Court. (Code of Civ. Proc., § 395b(a).)

Plaintiff shall be responsible for all court fees and costs required for the transfer of the action and all fees and costs due to the receiving court. This includes a \$50.00 processing fee due to this court to process the transfer. Plaintiff is likewise responsible for the filing fee of \$435.00 payable to the receiving court. Plaintiff shall submit to the clerk of this Court a check in the amount of \$435.00 payable to the receiving court within 20 days of the date of the hearing on the instant motion.

Future court dates in this Court are VACATED.

The Court will prepare the final order.

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